

Master Services Agreement - Executed 2024

Acme Technologies, Inc. and Northstar Health System | Effective Date: July 31, 2024 | CLM-2024-Northstar

This Master Services Agreement (the **Agreement**) is entered into as of July 31, 2024 (the **Effective Date**) by and between Acme Technologies, Inc., a Delaware corporation (**Acme**), and Northstar Health System, a Minnesota nonprofit corporation (**Customer**). This Agreement was executed by the Parties and is in full force and effect.

1. SERVICES AND USE RIGHTS

Subject to Customer's payment of applicable fees, Acme grants Customer a limited, non-exclusive, non-transferable right during the subscription term to access and use the Services for Customer's internal business operations.

2. FEES, INVOICING, AND TAXES

Customer will pay the fees stated in each Order Form. Subscription fees are invoiced annually in advance; undisputed amounts are due forty-five days from invoice date. Fees exclude transaction taxes other than taxes on Acme's net income.

3. SERVICE LEVELS AND SUPPORT

Acme will provide the support and service levels described in the applicable Order Form. Service credits are Customer's sole monetary remedy for a service-level failure and will not exceed twenty percent of the monthly subscription fees for the affected Service.

4. DATA OWNERSHIP AND PRIVACY

As between the Parties, Customer owns Customer Data. Acme will process Customer Data only to provide, secure, support, and improve the Services. Where Acme processes personal data or PHI, the Data Processing Addendum and Business Associate Agreement govern that processing.

5. INFORMATION SECURITY

Acme maintains a written information security program with administrative, technical, and physical safeguards, including encryption in transit and at rest, least-privilege access, logging, vulnerability management, and annual penetration testing. Acme will notify Customer of a confirmed Security Incident without undue delay and no later than seventy-two hours after confirmation.

6. CONFIDENTIALITY

Each Party will use the other's Confidential Information only to perform or exercise rights under this Agreement and will protect it using at least reasonable care.

7. LIMITATION OF LIABILITY

Except for Excluded Claims, each Party's aggregate liability will not exceed the fees paid or payable under the affected Order Form during the twelve months preceding the event giving rise to liability. Neither Party is liable for indirect, special, incidental, consequential, or punitive damages.

8. TERM AND TERMINATION

This Agreement began on the Effective Date and continues for a subscription term of 36 months, renewing for successive one-year periods unless either Party provides at least ninety days' written notice before the current term ends. Either Party may terminate for uncured material breach.

9. GOVERNING LAW

This Agreement is governed by Delaware law without regard to conflict-of-law rules. State and federal courts located in Wilmington, Delaware have exclusive jurisdiction.

SIGNATURES

Executed by the Parties as of July 24, 2024.

ACME TECHNOLOGIES, INC.	NORTHSTAR HEALTH SYSTEM
By: /s/ Elena Martinez	By: /s/ Marcus Bennett
Name: Elena Martinez	Name: Marcus Bennett
Title: Chief Revenue Officer	Title: Chief Procurement Officer
Date: July 24, 2024	Date: July 24, 2024

EXHIBIT A - ORDER SUMMARY (2024)

Commercial Term	Agreed Value
Services	Workflow Analytics, Operations Console, Premium Support
Subscription term	36 months
Annual recurring fees	\$2,150,000
Payment terms	Net 45
Governing law	Delaware

This synthetic executed agreement is designed for contract-lifecycle demonstrations. Names, terms, and provisions are fictional and are not legal advice.